

**Present**  
**Mr. Justice Sheikh Abdul Awal**  
**Criminal Appeal No. 149 of 2015**

Md. Nurunnabi

.....Convict-appellant.

-Versus-

State

.....Respondent.

Mr. Amio Chackrabarti for

Mr. Ashok Kumar Banik, Advocate

.....For the convict-appellant.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

.....For the respondent

**Heard on 11.01.2024 and**

**Judgment on 21.01.2024.**

**Sheikh Abdul Awal, J:**

This Criminal Appeal at the instance of the convict appellant, Md. Nurunnabi is directed against the judgment and order of conviction and sentence dated 27.11.2014 passed by the learned Additional Sessions Judge, 7<sup>th</sup> Court, Chittagong in Sessions Case No. 528 of 2012 arising out of G.R. No. 331 of 2011 corresponding to Patiya Police Station Case No. 28 dated 25.12.2011 convicting the accused appellant under Section 22(Ga) of the Narcotics Control Act,

1990 and sentencing him thereunder to suffer simple Imprisonment for a period of 3(three) years and to pay a fine of Taka 3,000/-(three thousand) in default to suffer simple imprisonment for 3 (three) month more.

Today this matter appeared in the list for pronouncement of judgment.

Mr. Amio Chackrabarti, the learned Advocate appearing for the convict appellant submits that he knows nothing about the facts of the case as well as whereabouts of the convict appellant.

At the time of pronouncement of judgment, it appears from the record that this Court on 20.01.2015 at the time of admission of appeal granted bail to the convict appellant for a period of 06(six) months, which was lastly extended on 06.06.2016 for a period of 01(one) year and thereafter no one took any steps to extend the order of bail as a result of which the said bail was expired long before on 06.06.2017. In that view of the matter, I have no hesitation to hold that the convict appellant is a fugitive from law.

In the case of Anti-Corruption Commission Vs. Dr. HBM Iqbal Alamgir, reported in 15BLC where it has been observed by the Appellate Division that Court would not act in aid of an accused person who is a fugitive from law and justice.

In view of the above, this appeal must fail.

In the result, the appeal is dismissed. The convict-appellant, Md. Nurunnabi is directed to surrender his bail bond within 3 (three) months from today to suffer his sentence, failing which the trial Court below shall take necessary steps to secure arrest against the convict appellant.

Send down the lower Court records at once.